



New Mexico Real Estate Practice Test

Free Real Estate License Practice Questions with Answers

- 50 carefully curated practice questions
- Real exam format and difficulty
- Updated for 2026 regulations
- Print-ready professional design

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Practice Questions

1. Seller Sarah lists their home for \$1,50,000 under an Exclusive Agency Listing agreement with a broker. If Sarah finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

2. Buyer David submits an offer to purchase a property from Michael for \$1,51,500. If Michael signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

3. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

4. Seller Michael lists their home for \$1,54,500 under an Exclusive Agency Listing agreement with a broker. If Michael finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

5. Buyer Emily submits an offer to purchase a property from Ashley for \$1,56,000. If Ashley signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

6. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

7. Seller Ashley lists their home for \$1,59,000 under an Exclusive Agency Listing agreement with a broker. If Ashley finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

8. Buyer Robert submits an offer to purchase a property from John for \$1,60,500. If John signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

9. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

10. Seller John lists their home for \$1,63,500 under an Exclusive Agency Listing agreement with a broker. If John finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

11. Buyer Megan submits an offer to purchase a property from Brian for \$1,65,000. If Brian signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

12. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

13. Seller Brian lists their home for \$1,68,000 under an Exclusive Agency Listing agreement with a broker. If Brian finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

14. Buyer Taylor submits an offer to purchase a property from Karen for \$1,69,500. If Karen signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

15. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

16. Seller Karen lists their home for \$1,72,500 under an Exclusive Agency Listing agreement with a broker. If Karen finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

17. Buyer Matthew submits an offer to purchase a property from Sarah for \$1,74,000. If Sarah signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

18. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

19. Seller Sarah lists their home for \$1,77,000 under an Exclusive Agency Listing agreement with a broker. If Sarah finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

20. Buyer David submits an offer to purchase a property from Michael for \$1,78,500. If Michael signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

21. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

22. Seller Michael lists their home for \$1,81,500 under an Exclusive Agency Listing agreement with a broker. If Michael finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

23. Buyer Emily submits an offer to purchase a property from Ashley for \$1,83,000. If Ashley signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

24. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

25. Seller Ashley lists their home for \$1,86,000 under an Exclusive Agency Listing agreement with a broker. If Ashley finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

26. Buyer Robert submits an offer to purchase a property from John for \$1,87,500. If John signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

27. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

28. Seller John lists their home for \$1,90,500 under an Exclusive Agency Listing agreement with a broker. If John finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

29. Buyer Megan submits an offer to purchase a property from Brian for \$1,92,000. If Brian signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

30. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

31. Seller Brian lists their home for \$1,95,000 under an Exclusive Agency Listing agreement with a broker. If Brian finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

32. Buyer Taylor submits an offer to purchase a property from Karen for \$1,96,500. If Karen signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

33. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

34. Seller Karen lists their home for \$1,99,500 under an Exclusive Agency Listing agreement with a broker. If Karen finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

35. Buyer Matthew submits an offer to purchase a property from Sarah for \$2,01,000. If Sarah signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

36. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

37. Seller Sarah lists their home for \$2,04,000 under an Exclusive Agency Listing agreement with a broker. If Sarah finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

38. Buyer David submits an offer to purchase a property from Michael for \$2,05,500. If Michael signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

39. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

40. Seller Michael lists their home for \$2,08,500 under an Exclusive Agency Listing agreement with a broker. If Michael finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

41. Buyer Emily submits an offer to purchase a property from Ashley for \$2,10,000. If Ashley signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

42. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

43. Seller Ashley lists their home for \$2,13,000 under an Exclusive Agency Listing agreement with a broker. If Ashley finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

44. Buyer Robert submits an offer to purchase a property from John for \$2,14,500. If John signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

45. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

46. Seller John lists their home for \$2,17,500 under an Exclusive Agency Listing agreement with a broker. If John finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

47. Buyer Megan submits an offer to purchase a property from Brian for \$2,19,000. If Brian signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

48. Which of the following describes the primary purpose of the Statute of Frauds in real estate transactions?

- A) To prevent fraudulent advertising by licensed agents.
- B) To require that all contracts for the transfer of real estate interests be in writing to be enforceable.
- C) To regulate interest rates on residential loans.
- D) To establish standard commissions for brokerages.

49. Seller Brian lists their home for \$2,22,000 under an Exclusive Agency Listing agreement with a broker. If Brian finds a buyer independently, how much commission is owed to the broker?

- A) No commission is owed.
- B) The full contracted commission is owed.
- C) Exactly 50% of the commission is owed.
- D) A commission is only owed for advertising costs.

50. Buyer Taylor submits an offer to purchase a property from Karen for \$2,23,500. If Karen signs the offer but changes the closing date by two days, what is the legal status?

- A) A valid contract exists because the change is minor.
- B) The original offer is rejected, and a new counteroffer has been created.
- C) The contract is voidable at the buyer's sole discretion.
- D) An implied contract is immediately formed.

Answer Key & Explanations

Question 1: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 2: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 3: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 4: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 5: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 6: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 7: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 8: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 9: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 10: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 11: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 12: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 13: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 14: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 15: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 16: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 17: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 18: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 19: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 20: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 21: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 22: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 23: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 24: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 25: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 26: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 27: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 28: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 29: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 30: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 31: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 32: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 33: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 34: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 35: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 36: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 37: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 38: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 39: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 40: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 41: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 42: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 43: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 44: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 45: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 46: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 47: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.

Question 48: Correct Answer (B)

Explanation: The Statute of Frauds requires real estate sales agreements and leases over one year to be in writing to be legally enforceable.

Question 49: Correct Answer (A)

Explanation: Under an Exclusive Agency Listing, the seller retains the right to sell the property privately without owing any commission.

Question 50: Correct Answer (B)

Explanation: Any change to a written offer acts as a rejection and creates a new counteroffer, which must be accepted by the other party.